

PREFERRED EQUINE ONLINE, LLC

TERMS AND CONDITIONS OF USE

IMPORTANT: READ CAREFULLY. Please read these Terms and Conditions of Use (these “Terms of Use”) carefully as they contain important information about your legal rights, remedies and obligations. These Terms of Use are a legal contract between you and Preferred Equine Online, LLC (as defined herein). By accessing the Service, you agree to be bound by these Terms of Use. If you do not agree to these Terms of Use or any provision of them, please exit the Service and refrain from all further use of it.

Please note: Section 15 of these Terms of Use below contains an arbitration clause and class action waiver that apply to all users. Section 15 affects how disputes with Preferred Equine are resolved. By accepting these Terms of Use, you agree to be bound by this arbitration clause and class action waiver. Please read it carefully.

1. User’s Acknowledgment and Acceptance of Terms.

Preferred Equine Online, Inc. (“Preferred Equine,” “us,” or “we”) provides the website (preferredequineonline.com (the “Website”) and all services offered by us through the Website or otherwise, including without limitation, all mobile, tablet, and other smart devices applications and application program interfaces and associated services (collectively, the “Service”) subject to your compliance with all the terms, conditions, and notices contained or referenced in these Terms of Use, as well as any other written agreement between you and/or your company, as applicable (at times, “you” or “user(s)”) and us. As used in these Terms of Use, references to our “Affiliates” include our owners, subsidiaries, affiliated companies, officers, directors, suppliers, partners, sponsors, and advertisers, and includes (without limitation) all individuals and entities involved in creating, producing, and/or delivering the Service and/or its contents.

BY COMPLETING THE REGISTRATION PROCESS AND/OR USING THE SERVICE, YOU AGREE TO BE BOUND BY THESE TERMS OF USE FOR YOURSELF AND ANY INDIVIDUAL OR ENTITY THAT ACCESSES AND/OR USES THE SERVICE UNDER YOUR ACCOUNT OR USER NAME. IF YOU DO NOT WISH TO BE BOUND BY THE THESE TERMS OF USE, PLEASE EXIT THE SERVICE NOW. YOUR REMEDY FOR DISSATISFACTION WITH THE SERVICE, OR ANY PRODUCTS, SERVICES, CONTENT, OR OTHER INFORMATION AVAILABLE ON OR THROUGH THE SERVICE, IS TO STOP USING THE SERVICE AND/OR THOSE PARTICULAR PRODUCTS OR SERVICES. YOUR AGREEMENT WITH US REGARDING COMPLIANCE WITH THESE TERMS OF USE BECOMES EFFECTIVE IMMEDIATELY UPON COMMENCEMENT OF YOUR USE OF THE SERVICE.

2. Amendments or Updates to Terms of Use.

These Terms of Use are effective as of the date set forth above. We reserve the right to change these Terms of Use from time to time without notice to you. You acknowledge and agree that it is your responsibility to review the Service and these Terms of Use periodically and to be aware of any modification(s). Your continued use of the Service after such modification(s) will constitute your acknowledgment of the modified Terms of Use and agreement to abide and be bound by such modified Terms of Use.

3. Separate Terms.

The access to or use of certain areas and features of the Service may be subject to separate policies, standards or guidelines, or may require that you accept additional terms and conditions. If there is a conflict between these Terms of Use and terms and conditions applicable to a specific area or feature of the Service, the latter terms and conditions will take precedence with respect to your access to or use of that area or feature, unless specified otherwise. For example, your participation in horse auctions conducted by or through the Service shall be governed by the Conditions of Sale applicable to the relevant auction to the extent of any conflict or inconsistency between such Conditions of Sale and these Terms of Use.

4. Description of Services.

We make various services available on and through the Service including, but not limited to, providing a platform for bidding, purchasing, and selling horses and related services. Fees for the various services are set out in the membership and service fees described elsewhere on and through the Service. You are solely responsible for providing, at your own expense, all equipment necessary to use the Service.

We reserve the sole right to modify or discontinue the Service, including any features therein, at any time with or without notice to you. We shall not be liable to you or any third party should we exercise such right. Modifications may include, but are not limited to, changes in the pricing structure, the addition of fee-based services, or changes to limitations on allowable file sizes. Any new features that augment or enhance the then-current services provided on or through the Service also shall be fully subject to these Terms of Use.

You understand and agree that temporary interruptions of the services available on or through the Service may occur from time to time as normal events. You further understand and agree that: (i) we have no control over third party networks that you may access in the course of accessing and using the Service; and (ii) therefore, delays and disruptions of other network transmissions are completely beyond our control.

You understand and agree that the services available on or through the Service are provided “AS IS” and that we assume no responsibility for the timeliness, deletion, mis-delivery, or failure to store any user communications or personalization settings in or through the Service.

5. Registration Data, Privacy, and Security.

To access some of the services on or through the Service, you must be at least eighteen (18) years old and it will require you to obtain a separate account and password that can be obtained by completing our online registration form, which requests certain information and data (collectively, the “Registration Data”), and

maintaining and updating your Registration Data as required. By registering, you agree that: (i) you are eighteen (18) years of age or older and have the capacity to enter into an enforceable contract with us; (ii) if you are registering an account for a company or other legal entity, you represent and warrant that you have the authority to legal bind such company or other entity to these Terms of Use in their entirety and specifically to grant us all permissions and license provided for in these Terms of Use; (iii) all information provided in the Registration Data is true and accurate; and (iv) you will maintain and update this information as required to keep it current, complete, and accurate from time to time.

User verification on the Internet is difficult and we do not assume any responsibility for the confirmation of any user's identity. Notwithstanding the above, for transparency and fraud prevention purposes and as permitted by applicable laws, we may (but have no obligation to) ask users to provide additional information for identification or verification purposes as we deem appropriate in our sole and absolute discretion.

You also grant us the right to disclose to third party individuals and entities certain Registration Data about you. The information we obtain through your use of the Service, including your Registration Data, is subject to our Privacy Policy, which is specifically hereby incorporated by reference into these Terms of Use in its entirety.

You are responsible for maintaining the confidentiality and security of your account credentials and may not disclose your credentials to any third party. You should immediately notify Preferred Equine if you know or have any reason to suspect that your credentials have been lost, stolen, misappropriated, or otherwise compromised or in case of any actual or suspected unauthorized use of your account. You are liable for any and all activities conducted through your account, unless such activities are not authorized by you and you are not otherwise negligent (such as failing to report the unauthorized use or loss of your credentials).

6. Rules of Conduct.

We expect users of the Service to respect the law and the rights and dignity of others. While using the Service, you agree to comply with all applicable laws, rules and regulations. In addition, your use of the Service is conditioned on your compliance with the rules of conduct set forth in these Terms of Use and failure to comply may result in termination of your access to the Service. If we are made aware of any information or materials posted, transmitted or otherwise made available through or in connection with the Service that may be a violation of any law, regulation or right of a third party, or a violation of these Terms, we have the right, but not the obligation, to remove or disable access to the respective information or materials. Any act or use by you that violates any of the above agreements is strictly prohibited and shall be a material breach of these Terms. You agree that we may at any time, and at our sole instance and in our absolute discretion, terminate your membership without prior notice to you for violating any of the provisions of these Terms of Use and/or of the Preferred Equine Privacy Policy [<https://vapor-preferredequine-production.s3.amazonaws.com/46/PEO-Privacy-Policy.doc-OL-v1-2-4-2022.pdf>]. In addition, you acknowledge that we will cooperate fully with investigations of violations of systems or

network security at or through other websites or applications, including cooperating with law enforcement authorities in investigating suspected criminal violations.

7. Content.

Proprietary Rights: The Service may, in its entirety or in part, be protected by copyright, trademark, and/or other laws of the United States. You acknowledge and agree that the Service, including all associated intellectual property rights, are the exclusive property of Preferred Equine and/or its licensors or authorizing third parties. You will not remove, alter or obscure any copyright, trademark, service mark or other proprietary rights notices incorporated in or accompanying the Service. All trademarks, service marks, logos, trade names, and any other source identifiers of Preferred Equine used on or in connection with Service are trademarks or registered trademarks of Preferred Equine in the United States. Trademarks, service marks, logos, trade names and any other proprietary designations of third parties used on or in connection with the Service are used for identification purposes only and may be the property of their respective owners.

Prohibited Uses: You will not use, copy, adapt, modify, prepare derivative works of, distribute, license, sell, transfer, publicly display, publicly perform, transmit, broadcast or otherwise exploit the Service. No licenses or rights are granted to you (by implication or otherwise) under any intellectual property rights owned or controlled by Preferred Equine or its licensors other than the limited license to (i) use the Service on your personal device(s), and (ii) access and view any content made available through the Service and accessible to you, solely for your personal and non-commercial use.

License: By creating, uploading, posting, sending, receiving, storing, or otherwise making available any user content on or through the Service, you grant to Preferred Equine a non-exclusive, worldwide, royalty-free, irrevocable, perpetual (or for the term of the protection), sub-licensable and transferable license to such user content, to access, use, store, copy, modify, prepare derivative works of, distribute, publish, transmit, stream, broadcast, and otherwise exploit in any manner such user content to provide and/or promote the Service, in any media or platform.

User Warranties: You are solely responsible for all user content that you make available on or through the Service. Accordingly, you represent and warrant that: (i) you either are the sole and exclusive owner of all user content that you make available on or through the Service or you have all rights, licenses, consents and releases that are necessary to grant to Preferred Equine the rights in and to such user content, as contemplated under these Terms; and (ii) the user content, your posting, uploading, publication, submission or transmittal of the user content, and Preferred Equine's use of such user content (or any portion thereof) does not and will not infringe, misappropriate or violate a third party's patent, copyright, trademark, trade secret, moral rights or other proprietary or intellectual property rights, or rights of publicity or privacy, or result in the violation of any applicable law or regulation.

Prohibited User Conduct: You will not post, upload, publish, submit or transmit any user content that: (i) is fraudulent, false, misleading (directly or by omission, including, but not limited to, failure to update

information) or deceptive; (ii) is defamatory, libelous, obscene, pornographic, vulgar or offensive; (iii) promotes discrimination, bigotry, racism, hatred, harassment or harm against any individual or group; (iv) is violent or threatening or promotes violence or actions that are threatening to any other person or animal; (v) promotes illegal or harmful activities or substances; or (vi) violates any Preferred Equine policy or standard. Preferred Equine may, without prior notice, remove or disable access to any user content that Preferred Equine finds to be in violation of these Terms or Preferred Equine's then-current policies or standards, or otherwise may be harmful or objectionable to Preferred Equine, its users, third parties, or property.

Copyright Law: Preferred Equine respects copyright law and expects its Members to do the same. If you believe that any content on the Service infringes copyrights you own, please notify us immediately by following the instructions provided in the Contact Us section of these Terms.

8. Third Party Websites, Services, Applications, and Information.

The Service may link you to other websites on the Internet or otherwise include references to information, documents, software, materials and/or services provided by other individuals or entities. Those external sites may contain information or material that some people may find inappropriate or offensive. Those external sites and individuals and entities are not under our control, and you acknowledge that: (i) we are not responsible for the accuracy, copyright compliance, legality, decency, or any other aspect of the content of such external sites; and (ii) we are not responsible for errors or omissions in any references to other individuals or entities and/or their products and services. The inclusion of such a link or reference is provided merely as a convenience and does not imply endorsement of, or association with, the Service or any individual or entity by us, or any warranty of any kind, either express or implied.

9. DISCLAIMER OF WARRANTIES.

ALL MATERIALS AND SERVICES AVAILABLE ON OR THROUGH THE SERVICE ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS WITHOUT WARRANTY OF ANY KIND, EITHER EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO, THE IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, OR THE WARRANTY OF NONINFRINGEMENT. WITHOUT LIMITING THE FOREGOING, WE MAKE NO WARRANTY THAT: (A) ANY SERVICES AND MATERIALS WILL MEET YOUR REQUIREMENTS; (B) ANY SERVICES AND MATERIALS WILL BE UNINTERRUPTED, TIMELY, SECURE, OR ERROR-FREE; (C) THE RESULTS THAT MAY BE OBTAINED FROM THE USE OF ANY SERVICES OR MATERIALS WILL BE EFFECTIVE, ACCURATE, OR RELIABLE; OR (D) THE QUALITY OF ANY PRODUCTS, SERVICES, OR INFORMATION PURCHASED OR OBTAINED BY YOU FROM OR THROUGH THE SERVICE FROM US OR OUR AFFILIATES WILL MEET YOUR EXPECTATIONS OR BE FREE FROM MISTAKES, ERRORS, DEFECTS, BUGS, VIRUSES, TROJAN HORSES, OR THE LIKE THAT MAY BE TRANSMITTED ON OR THROUGH THE SERVICE BY AND INDIVIDUALS OR ENTITIES, INCLUDING THIRD PARTIES.

THE SERVICE COULD INCLUDE TECHNICAL OR OTHER MISTAKES, INACCURACIES, OR TYPOGRAPHICAL ERRORS. WE MAY MAKE CHANGES TO THE MATERIALS AND SERVICES AT OR ON THE SERVICE, INCLUDING THE PRICES AND DESCRIPTIONS OF ANY PRODUCTS OR SERVICES LISTED THEREIN, AT ANY TIME WITHOUT NOTICE. THE MATERIALS OR SERVICES AT OR ON THE SERVICE MAY BE OUT OF DATE, AND WE MAKE NO COMMITMENT TO UPDATE ANY SUCH MATERIALS OR SERVICES.

THE USE OF THE SERVICES OR THE DOWNLOADING OR OTHER ACQUISITION OF ANY MATERIALS AVAILABLE OR ACCESSED ON OR THROUGH THE SERVICE IS DONE AT YOUR OWN DISCRETION AND RISK AND WITH YOUR AGREEMENT THAT YOU WILL BE SOLELY RESPONSIBLE FOR ANY DAMAGE TO YOUR COMPUTER SYSTEM OR LOSS OF DATA THAT RESULTS FROM SUCH ACTIVITIES, IN ADDITION TO ANY OTHER LOSS OR DAMAGE OF ANY KIND INCURRED AS A RESULT OF THE USE OF ANY CONTENT POSTED, EMAILED, TRANSMITTED, OR OTHERWISE MADE AVAILABLE ON OR THROUGH THE SERVICE. YOU UNDERSTAND AND AGREE THAT YOU ACCESS AND USE THE SERVICE AT YOUR OWN RISK.

Through your use of the Service, you may have the opportunities to engage in commercial transactions with other users and vendors. You acknowledge that all transactions relating to any property, merchandise, or services offered by any individual or entity, including but not limited to the purchase terms, payment terms, warranties, guarantees, maintenance, and delivery terms relating to such transactions, are agreed to solely between: (i) the seller or purchaser of such property, merchandise, and services; and (ii) you.

WE MAKE NO WARRANTY REGARDING ANY TRANSACTIONS EXECUTED THROUGH, OR IN CONNECTION WITH, THE SERVICE, AND YOU UNDERSTAND AND AGREE THAT SUCH TRANSACTIONS ARE CONDUCTED ENTIRELY AT YOUR OWN RISK. ANY WARRANTY THAT IS PROVIDED IN CONNECTION WITH ANY PRODUCTS, SERVICES, MATERIALS, OR INFORMATION AVAILABLE ON OR THROUGH THE SERVICE FROM A THIRD-PARTY INDIVIDUAL OR ENTITY IS PROVIDED SOLELY BY SUCH THIRD PARTY INDIVIDUAL OR ENTITY AND NOT BY US OR ANY OF OUR AFFILIATES.

Before purchasing products and services on or through the Service, review our separate Conditions of Sale, Consignor Agreement, Acknowledgment of Purchase and Security Agreement, Privacy Policy, and all other rules of conduct, disclaimers of warranty, limitations of liability, indemnification, and dispute resolution provisions as to the Service, all of which are incorporated by reference into these Terms of Use in their entirety. If you would like a copy of any such document(s), you may obtain them from the Service or by requesting a copy of any such document(s) by email to: online@preferredequine.com.

Content available on or through the Service often represents the opinions and judgments of an information provider, user, or other individual or entity not connected with Preferred Equine. We do not endorse, nor are we responsible for the accuracy or reliability of, any opinion, advice, or statement made by anyone other than an authorized Preferred Equine spokesperson speaking in his/her official capacity. Please refer to the specific

editorial policies posted on various sections of the Service for further information, which policies are incorporated by reference into these Terms of Use in their entirety as well.

In addition, the materials available on or through the Service may include sample or form agreements, letters, or other documents, including financially or legally significant documents such as contracts and other items (collectively, the “Forms”). The Forms are provided solely as examples of typical documents of their kind, and the delivery and use of Forms does not constitute legal, accounting, or other professional advice. Under no circumstance will Preferred Equine or its Affiliates be liable for any loss or damages caused by your reliance on information or advice obtained on or through the Service, including your use of any of the Forms. It is your responsibility to evaluate the accuracy, completeness, or usefulness of any information, opinions, advice, Forms, or other content available on or through the Service. In particular, you are urged to consult an appropriate professional licensed in your jurisdiction before using any Forms or otherwise relying on any legal, accounting, or other professional advice or information obtained on or through the Service.

SOME STATES OR JURISDICTIONS DO NOT ALLOW THE EXCLUSION OF CERTAIN WARRANTIES, SO SOME OF THE ABOVE LIMITATIONS MAY NOT APPLY TO YOU.

10. Limitation of Liability.

IN NO EVENT SHALL PREFERRED EQUINE, ITS AFFILIATES OR THEIR RESPECTIVE EMPLOYEES, DIRECTORS, OFFICERS, OWNERS OR AGENTS BE LIABLE FOR ANY DAMAGES WHATSOEVER (INCLUDING, WITHOUT LIMITATION, LOST PROFITS, DIRECT, INDIRECT, INCIDENTAL, SPECIAL, PUNITIVE OR CONSEQUENTIAL DAMAGES) RESULTING FROM USE OF THE SERVICE, INCLUDING WITHOUT LIMITATION ANY (I) ERRORS, MISTAKES OR INACCURACIES OF CONTENT, (II) PERSONAL INJURY OR PROPERTY DAMAGE, OF ANY NATURE WHATSOEVER, RESULTING FROM ANY VISITOR’S ACCESS TO AND USE OF THE SERVICE, (III) ANY INTERRUPTION OR CESSATION OF TRANSMISSION TO OR FROM THE SERVICE, (IV) ANY BUGS, VIRUSES, TROJAN HORSES OR THE LIKE, WHICH MAY BE TRANSMITTED TO OR THROUGH THE SERVICE BY ANY THIRD PARTY, AND/OR (V) ANY ERRORS OR OMISSIONS IN ANY CONTENT OR FOR ANY LOSS OR DAMAGE OF ANY KIND INCURRED AS A RESULT OF THE USE OF ANY CONTENT POSTED, EMAILED, TRANSMITTED OR OTHERWISE MADE AVAILABLE VIA THE SERVICE, WHETHER BASED ON WARRANTY, CONTRACT, TORT OR ANY OTHER LEGAL THEORY. THE FOREGOING LIMITATION OF LIABILITY SHALL APPLY TO THE FULLEST EXTENT PERMITTED BY LAW IN THE APPLICABLE JURISDICTION. IF ANY PART OF THIS LIMITATION OF LIABILITY IS INVALID, ILLEGAL OR UNENFORCEABLE, THEN THE AGGREGATE LIABILITY OF PREFERRED EQUINE AND OUR AFFILIATES AND THEIR RESPECTIVE EMPLOYEES, DIRECTORS, OFFICERS, OWNERS AND AGENTS UNDER SUCH CIRCUMSTANCES TO YOU OR TO ANYONE ELSE WILL NOT EXCEED ONE HUNDRED DOLLARS. SOME OF THE ABOVE DISCLAIMERS AND

LIMITATIONS MAY NOT APPLY TO YOU IF THEY ARE NOT PERMITTED BY THE LAWS OF YOUR JURISDICTION.

11. Indemnification.

You agree to defend, indemnify, and hold Preferred Equine and its Affiliates and their respective employees, officers, directors, owners and agents harmless from any and all liabilities, claims, and expenses, including attorney's fees and expenses, that arise from: (i) your use or misuse of the Service; (ii) your breach of these Terms of Use; and (iii) your breach of any applicable laws, regulations, or third-party rights. We reserve the right, at our own expense, to assume the exclusive defense and control of any matter otherwise subject to indemnification by you, in which event you will cooperate with us in asserting any and all available defenses.

12. Security and Password.

You are solely responsible for maintaining the confidentiality of your password and account and for any and all statements made and acts or omissions that occur through the use of your password and account, including any mail or messages sent and any charges incurred. Therefore, you must take steps to ensure that other individuals or entities do not gain access to your password and account. Our personnel will never ask you for your password. You may not transfer or share your account with anyone, and we reserve the right to immediately terminate your account in the event of any unauthorized transfer or sharing thereof.

13. International Use.

Although the Service may be accessible worldwide, we make no representation that materials available on or through the Service are appropriate or available for use in locations outside the United States, and accessing them from territories where their contents are illegal is prohibited. Those who choose to access the Service from other locations do so on their own initiative and are responsible for compliance with all applicable laws. Any offer for any product, service, and/or information made in connection with or through the Service is void where prohibited.

Software available on or through the Service is subject to United States Export Controls. No software from the Service may be downloaded or exported: (a) into (or to a resident of) Cuba, Iraq, Libya, North Korea, Iran, Syria, or any other country concerning which the United States has embargoed goods; or (b) anyone on the United States Treasury Department's list of "Specially Designated Nationals" or the United States Commerce Department's "Table of Deny Orders." By downloading or using the software available on or through the Service, you represent and warrant that you are not located in, under the control of, or a national or resident of any such country or on any such prohibited list.

14. Termination of Use.

You agree that we may, in our sole discretion, terminate or suspend your access to all or part of the Service with or without notice and for any reason, including, without limitation, breach of these Terms of Use. Any

suspected fraudulent, abusive, or illegal activity may be grounds for terminating your relationship and may be referred to appropriate law enforcement authorities.

Upon termination or suspension, regardless of the reasons therefore, your right to use the services or purchase any products available on or through the Service will cease immediately, and you acknowledge and agree that we may immediately deactivate or delete your account, and all related information and files in your account and/or bar any further access to such files or the Service. We shall not be liable to you or any third-party individual or entity for any claims or damages arising out of any termination or suspension or any other actions taken by us in connection therewith. Unless prohibited by applicable law, the provisions of these Terms that should reasonably survive termination will remain in effect, including without limitation, Sections 7, 9, 10, 11, 14, and 15 of these Terms of Use.

15. Dispute Resolution.

Agreement: Except as may be otherwise provided under our Conditions of Sale, you and Preferred Equine agree that we will resolve any dispute or question arising as to the interpretation of any clause of, or the rights and liabilities of the parties under or in any manner relating to these Terms of Use and connected in any manner with use of the Service (a “Claim”) in accordance with one of the subsections below or as Preferred Equine and you otherwise agree in writing.

Governing Law; Jurisdiction; Venue. Except as otherwise provided under our Conditions of Sale, these Terms of Use and the relationship between you and Preferred Equine with respect to the Service shall be governed by the laws of the Commonwealth of Kentucky without regard to the conflicts of laws rules thereof. Except as otherwise provided under this Section 15, you and Preferred Equine agree to submit to the personal and exclusive jurisdiction and proper venue of the Fayette Circuit Court and/or the Eastern District of Kentucky, in each case in Lexington, Fayette County, Kentucky, and waive any right to trial by jury.

Arbitration. Except as may otherwise be provided under our Conditions of Sale, any Claim shall be referred to final and binding arbitration before a single arbitrator in Lexington, Kentucky, under the rules and procedures of the American Arbitration Association relating to the selection of arbitrators for the determination of issues. The arbitration shall be governed by the United States Federal Arbitration Act, 9 U.S.C. §§ 1-16. This agreement to arbitrate is supported by adequate consideration, receipt of which is acknowledged. The decision of the arbitrator will be binding, final, and conclusive on you and us, and judgment on the arbitrator’s decision may be entered in any court having jurisdiction thereof. This agreement to arbitrate is binding upon any permitted successors, heirs, legal representatives, assigns, and transferees of you and us. The arbitrator may, at his or her own instance or upon the written request of you or us, issue written directions as to the scope and timetable for discovery. If the arbitrator should determine that the matter(s) in dispute may be resolved by a review of a written record and that a hearing is not necessary, you and we agree to effectively waive our rights to a hearing. The arbitrator shall be charged to draft and issue a written opinion reciting the facts as determined and the applicable law as applied. The arbitrator may award injunctive and other equitable relief,

as well as an award of monetary damages. No claim of fraud, duress, or other basis for revocation of contract made with respect to these agreed Terms of Use shall limit or preclude the enforcement of this agreement to arbitrate except as such fraud, duress, or other basis for revocation shall arise with particularity to this agreement to arbitrate, and each party conclusively agrees that this provision shall be interpreted in a manner consistent with the separability doctrine of *Prima Paint Corp. v. Flood and Conklin Mfg. Co.*, 388 U.S. 395 (1967), meaning that any claim of unenforceability of these Terms of Use must first be heard by an arbitrator consistent with this Section 19 rather than by any court.

Waiver. Neither you nor Preferred Equine will participate in a class action or class-wide arbitration for any Claims covered by this agreement to arbitrate. YOU ARE GIVING UP YOUR RIGHT TO PARTICIPATE AS A CLASS REPRESENTATIVE OR CLASS MEMBER ON ANY CLASS CLAIM YOU MAY HAVE AGAINST US INCLUDING ANY RIGHT TO CLASS ARBITRATION OR ANY CONSOLIDATION OF INDIVIDUAL ARBITRATIONS.

Improperly Filed Claims. All Claims brought under this Section 15 must be resolved in accordance with this Section 15, and you and we both conclusively agree to that. All Claims filed or brought contrary to this Section 15 shall be considered improperly filed. Should you file a Claim contrary to the procedures set forth in this Section 15, Preferred Equine shall be entitled to recover its reasonable attorneys' fees and costs actually incurred in disputing and defending it, provided that Preferred Equine has notified you in writing of the improperly filed Claim and that you have failed to promptly withdraw the Claim.

16. Contact Us.

If you have any questions about these Terms of Use, please contact us:

Preferred Equine Online, LLC

P.O. Box 2200

Briarcliff Manor, NY 10510

online@preferredequine.com

914-773-7777

17. Miscellaneous.

Entire Agreement: The terms and conditions set forth in these Terms of Use constitute the entire agreement and understanding between you and us concerning the subject matter hereof and supersede all prior agreements and understandings between you and us with respect to such subject matter.

No Modification. These Terms of Use may not be altered, supplemented, or amended by the use of any other document(s), except as otherwise expressly provided for in these Terms of Use. Any attempt to alter, supplement, or amend this document or to enter an order for products or services that are subject to additional

or altered terms and conditions shall be null and void, unless otherwise agreed to in a written agreement signed by you and us. To the extent that anything in or associated with the Service is in conflict or inconsistent with these Terms of Use, these Terms of Use shall take precedence.

Costs and Expenses: In any action to enforce these Terms of Use, the prevailing party will be entitled to reimbursement for costs and attorneys' fees incurred. Any cause of action brought by you against us or our Affiliates must be instituted with one (1) year after the cause of action arises or be deemed forever waived and barred. For clarity, such limitation will not apply to any cause of action by us against you, as all such causes of action will be limited only by applicable law. Notwithstanding anything in these Terms of Use to the contrary, and to avoid any doubt, you retain all applicable personal information and other rights as set forth in our Privacy Policy, including without limitation, your rights to have your personal information erased and your rights to close your account.

Limitations Period: Any claim or cause of action arising out of or related to use of the Service or these Terms must be filed within one year after such claim or cause of action arose or be forever barred unless a longer period is mandated by applicable statute and, in such a case, you are limited to the maximum period permitted by law.

Assignment: You may not assign your rights and obligations under these Terms of Use to any individual or entity, and any purported attempt to do so shall be null and void. We may freely assign our rights and obligations under these Terms of Use without your consent.

Severability: In the event that any portion of these Terms of Use is held to be invalid, the invalidity of such provision will not affect the validity of the remaining provisions of the Terms, which will remain in full force and effect.

No Waiver: Any failure by us to enforce or exercise any provision(s) of these Terms of Use or related rights shall not constitute a waiver of that provision or right or of any other or additional rights.

Last Updated: 2/4/2022